

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariana Thomas	Team: Squad #16	CCRB Case #: 202207863	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/09/2022 2:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/9/2024	Precinct: 47
Date/Time CV Reported Thu, 11/17/2022 9:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/17/2022 9:57 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Kyron Delarosa	11960	960431	047 PCT
3. PO Albert Flores	09585	966060	047 PCT
4. Ryan Barnes	19195	958289	
5. An officer			
6. SGT Esnaidy Cuevas	00409	950256	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Nestor Allende	05539	960586	047 PCT
2. PO Vinicio Garcia	26742	954850	047 PCT
3. PO Pedro Herrera	05346	960667	047 PCT
4. PO Kenneth Williams	19074	959374	047 PCT
5. PO Ereliz Morales	13028	971571	047 PCT
6. PO Taylor Williams	07878	970319	047 PCT
7. SGT Alldon Verdejo	03317	951387	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers pointed their gun at § 87(2)(b)	A . Unfounded
B . Ryan Barnes	Abuse: Police Officer Ryan Barnes drew his gun.	B . Miscellaneous - Subject Resigned
C . SGT Esnaidy Cuevas	Abuse: Sergeant Esnaidy Cuevas entered § 87(2)(b) in the Bronx.	C . Within NYPD Guidelines
D . Officers	Abuse: Officers searched § 87(2)(b) in the Bronx.	D . Unfounded
E . SGT Esnaidy Cuevas	Abuse: Sergeant Esnaidy Cuevas threatened § 87(2)(b) with the use of force.	E . Within NYPD Guidelines
F . SGT Esnaidy Cuevas	Force: Sergeant Esnaidy Cuevas used physical force against § 87(2)(b)	F . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
G . PO Albert Flores	Force: Police Officer Albert Flores used physical force against § 87(2)(b)	G . Miscellaneous - Subject Resigned
H . An officer	Force: An officer used physical force against § 87(2)(b)	H . Unfounded
I . PO Kyron Delarosa	Force: Police Officer Kyron Delarosa used a non-lethal restraining device on § 87(2)(b)	I . Within NYPD Guidelines
J . PO Kyron Delarosa	Force: Police Officer Kyron Delarosa used a non-lethal restraining device on § 87(2)(b)	J . Substantiated
K . An officer	Force: An officer restricted § 87(2)(b) breathing.	K . Officer(s) Unidentified
L . An officer	Abuse: An officer threatened § 87(2)(b) dog with the use of force.	L . Unfounded
M . SGT Esnaidy Cuevas	Abuse: Sergeant Esnaidy Cuevas forcibly removed § 87(2)(b) to the hospital.	M . Within NYPD Guidelines

Case Summary

On November 11, 2022, § 87(2)(b) filed this complaint via telephone with the CCRB.

On July 9, 2022, at approximately 2:00 p.m., Sergeant Esnaily Cuevas, Police Officer Vinicio Garcia, Police Officer Ryan Barnes, Police Officer Albert Flores, Police Officer Pedro Herrera, Police Officer Nestor Allende, and Police Officer Kyron Delarosa, all of the 47th Precinct, responded to the FBI's request for assistance, via radio transmission, at § 87(2)(b) in the Bronx, regarding their pursuit of suspects wanted for a carjacking with a firearm in New Rochelle, New York. § 87(2)(b) 16-year-old son, § 87(2)(b) was inside his bedroom and saw officers with their guns pointed at him through his bedroom window (**Allegation A: Force, Unfounded**). § 87(2)(b) arrived home and saw officers surrounding the apartment building with their guns drawn (**Allegation B: Abuse of Authority, Unfounded**). Sgt. Cuevas and other NYPD officers entered § 87(2)(b) and allegedly searched it (**Allegation C: Abuse of Authority, Within NYPD Guidelines; Allegation D: Abuse of Authority, Unfounded**). Sgt. Cuevas threatened to tase § 87(2)(b) (**Allegation E: Abuse of Authority, Within NYPD Guidelines**). Sgt. Cuevas and PO Flores pulled § 87(2)(b) hands behind his back and pulled him out of the apartment, where they handcuffed him (**Allegations F: Force, Within NYPD Guidelines; Allegation G: Force, Miscellaneous—Subject Resigned**). An officer allegedly knelt on § 87(2)(b) back (**Allegation H: Force, Unfounded**). PO Delarosa tased § 87(2)(b) in drive stun mode and then in prong mode for two consecutive cycles (**Allegation I: Force, Within NYPD Guidelines**). PO Delarosa tased § 87(2)(b) for two additional cycles in prong mode (**Allegation J: Force, Substantiated**). After PO Delarosa tased § 87(2)(b) he allegedly could not breathe (**Allegation K: Force, Officer(s) Unidentified**). An officer allegedly told § 87(2)(b) “You’re lucky we didn’t shoot your dog” (**Allegation L: Abuse of Authority, Unfounded**). Sergeant Cuevas assisted EMTs in removing § 87(2)(b) to the hospital (**Allegation M: Abuse of Authority, Within NYPD Guidelines**).

§ 87(2)(b) was arrested as a result of this incident [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

This case was originally assigned to former Supervising Investigator Rachel Murgo and was reassigned to Investigator Ariana Thomas on June 28, 2023, upon her departure from the agency.

The investigation obtained 11 body-worn camera (“BWC”) videos from the NYPD Legal Bureau (**Board Review 03-13**). The investigation is not in possession of any additional video evidence.

Findings and Recommendations

Allegation (A) Force: Officers pointed their gun at § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Ryan Barnes drew his gun.

Allegation (C) Abuse of Authority: Sergeant Esnaily Cuevas entered § 87(2)(b) in the Bronx.

Allegation (D) Abuse of Authority: Officers searched § 87(2)(b) in the Bronx.

Three press articles published regarding this incident note that on July 9, 2022, at approximately 2:44 a.m., a man in New Rochelle called 911 and reported that two male suspects demanded his car keys and displayed a firearm (**Board Review 17-19**). The man complied and the two suspects took his vehicle and fled the area. New Rochelle Detectives, along with the Westchester County Police Real Time Crime Center and the FBI Safe Streets Task Force, tracked the vehicle to within the confines of the 47th Precinct in the Bronx. Following a foot chase, the suspects, ages 15, 16, and 17, were caught and taken into custody. They were charged with robbery in the first degree and

display of a firearm.

§ 87(2)(b) testified that he was in his bedroom playing X-box with his cousin's friend, § 87(2)(b) while his cousin, § 87(2)(b) was sleeping (**Board Review 14**). § 87(2)(b) heard a loud noise at the front door and walked towards it. Through the window on the front door, § 87(2)(b) saw four to five officers banging on the door. § 87(2)(b) returned to his room, where he looked out of his window and saw approximately three police officers surrounding the building. All three officers, whom he could not describe, pointed their guns towards § 87(2)(b) and ordered him not to move. Simultaneously, officers at the front of the door ordered § 87(2)(b) to open the door. § 87(2)(b) went to his sister's room, where his sister was lying down, and asked her to use her phone to call his mother, § 87(2)(b) who had gone to the supermarket. Before § 87(2)(b) could do so, approximately four to five officers, whom § 87(2)(b) could not describe, kicked the front door open and entered the apartment. The front door was not able to close afterwards. The officers searched the apartment, as they looked inside § 87(2)(b) room and closet, his brother's room and closet, and his sister's room and closet. § 87(2)(b) and § 87(2)(b) remained in § 87(2)(b) room. Officers arrested all three individuals and took them to the stationhouse.

§ 87(2)(b) testified that as she approached her apartment building, she saw NYPD officers, who were in uniform, and federal agents, who were in plainclothes, surrounding the building with their guns drawn (**Board Review 15**). § 87(2)(b) did not say how she identified the officers in plainclothes as federal agents. After § 87(2)(b) informed a federal agent that she did not have the key to open the door, the federal agent used his shoulder to forcibly open the door. Approximately 10 to 15 officers, including federal agents and NYPD officers, entered the apartment. § 87(2)(b) heard the officers looking for people they claimed, "ran out of a stolen car," which were § 87(2)(b) two nephews that the officers eventually removed from the home.

In BWC for Sgt. Cuevas (**Board Review 05**), at 02:12, Sgt. Cuevas, PO Garcia, and PO Barnes approach § 87(2)(b) where multiple plainclothes officers, identified via the investigation as non-members of the NYPD, are present, many of whom have their guns pointed towards the home. Sgt. Cuevas says, "My guys, back up." At 2:15, PO Barnes has his gun drawn. At 02:38, Sgt. Cuevas asks a non-member of the NYPD, "Is he in the house?" and he says yes. Sgt. Cuevas tells him he is going to request ESU and does so via radio transmission for a "possible barricaded EDP." At 02:54, Sgt. Cuevas orders PO Flores, who walks towards the entrance to § 87(2)(b) to get back. PO Flores says, "He said come on." Sgt. Cuevas says, "No, we're not clearing that right now." PO Flores remains outside of the apartment. At 03:12, Sgt. Cuevas asks the non-members of the NYPD who are inside the apartment, "You guys got him?" Incoherent yelling inside the apartment is heard. At 03:16, Sgt. Cuevas and PO Flores enter the apartment.

The NYPD officers' BWC footage (**Board Review 03-13**) does not capture any officers searching the apartment.

Based on civilian and officer testimony and the BWC footage, the investigation determined that the officers dressed in plainclothes were non-members of the NYPD, and that those dressed in NYPD uniform were the only NYPD officers present on scene.

In the police radio communications (**Board Review 16**), "FBI portable" reported that they were pursuing a black male who ran into § 87(2)(b) in regard to a carjacking that occurred in New Rochelle. "FBI portable" stated that the male was holding an apparently heavy object in his right pocket and that he was coming out of a rear fire escape.

Sgt. Cuevas' statement was generally consistent with the BWC footage (**Board Review 20**). He testified that on the morning on July 9, 2022, the FBI informed the 47th Precinct desk that they would be in the area because they were tracking a vehicle wanted for a carjacking that occurred in New Rochelle the night prior. The FBI said that the suspects carjacked an individual using a firearm. Sgt. Cuevas did not recall if the FBI provided any description of the subjects nor how many subjects they were looking for. At the start of the tour, the desk relayed this information to Sgt. Cuevas and his other public safety officers. On July 9, 2022, at approximately 1:35 p.m., while on patrol, the NYPD officers received a call via radio transmission for a "10-85" at § 87(2)(b) in the Bronx, in which the FBI or New Rochelle PD requested assistance. Upon arrival, Sgt. Cuevas observed non-members of the NYPD surrounding the house, some of whom had their guns out and pointed towards the home. Based on his experience as an officer, Sgt. Cuevas assumed that the suspects were likely resisting custody inside the home. Sgt. Cuevas did not point his gun at any civilians, nor did he see any NYPD officers' point or draw their firearms. When the NYPD officers arrived, the door to the building and § 87(2)(b) were already open and the non-members of the NYPD were inside the apartment calling for help. Sgt. Cuevas did not know what was happening and tried to assess the situation before letting his officers go inside the apartment because he did not want them to get hurt. The non-members of the NYPD continued to request assistance inside of the apartment, so Sgt. Cuevas and his officers entered the apartment to assist them. He considered this situation an emergency because officers typically do not call for "85" unless they really need help. Sgt. Cuevas did not search the apartment and never saw any NYPD officer do so.

PO Delarosa's statement was generally consistent with Sgt. Cuevas' testimony and the BWC footage (**Board Review 21, 35**). He did not recall if he drew his firearm or pointed it at § 87(2)(b) and denied searching § 87(2)(b) or seeing any NYPD officers do so.

Under the Fourth Amendment of the U.S. Constitution and Article I, Section 12, of the New York Constitution, warrantless entries into private dwellings are presumptively unreasonable unless the occupants of the dwelling provide consent, or exigent or emergency circumstances necessitated the officers' entry. Payton v. New York, 445 U.S. 573 (**Board Review 22**). People v. McBride, 14 N.Y.3d 440 (2010), requires that an urgent need be present to justify a warrantless entry. The factors used to be considered include: 1) the gravity or violent nature of the offense with which the suspect is to be charged, 2) whether the suspect is reasonably believed to be armed, 3) a clear showing of probable cause . . . to believe that the suspect committed the crime, 4) strong reason to believe that the suspect is in the premises being entered, 5) a likelihood that the suspect will escape if not swiftly apprehended, and 6) the peaceful circumstances of the entry (**Board Review 23**).

The Department Advocate's Office confirmed that on October 2, 2022, PO Barnes resigned from the NYPD (**Board Review 36**). He therefore could not be interviewed by the CCRB.

It is undisputed that the NYPD officers were responding to the FBI's request for assistance regarding their pursuit of fleeing suspects wanted for a carjacking involving a firearm. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation C** be closed as **Within NYPD Guidelines**.

The BWC footage confirms that PO Barnes drew his firearm as the officers approached § 87(2)(b) it is recommended that **Allegation B** be closed as **Miscellaneous—Subject Resigned**.

The BWC footage captures non-members of the NYPD with their guns drawn and pointed towards the home. § 87(2)(g) It is therefore recommended that **Allegations A and D** be closed as **Unfounded**.

Allegation (E) Abuse of Authority: Sergeant Esnaidy Cuevas threatened § 87(2)(b) with the use of force.

Allegation (F) Force: Sergeant Esnaidy Cuevas used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Albert Flores used physical force against § 87(2)(b)

Allegation (H) Force: An officer used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Kyron Delarosa used a non-lethal restraining device on § 87(2)(b)

Allegation (J) Force: Police Officer Kyron Delarosa used a non-lethal restraining device on § 87(2)(b)

Allegation (K) Force: An officer restricted § 87(2)(b) breathing.

§ 87(2)(b) testified that once the officers reached his bedroom, an officer whom he could only describe as a Black man with dark hair ordered him to exit the apartment and stand in front of the building. As § 87(2)(b) was walking towards the front of the building, two officers he could not see grabbed him from behind, ordered him to put his arms behind his back, and said he was under arrest. § 87(2)(b) asked why, but they did not tell him. § 87(2)(b) pulled his arms away from the officers as they grabbed him. Two officers grabbed § 87(2)(b) arms and shoulders and tried forcing him to the floor, but § 87(2)(b) refused to go to the floor. An officer behind § 87(2)(b) told him that if he did not cooperate, he would tase him. Once § 87(2)(b) was on the floor, on his stomach, an officer placed his knee in the middle of § 87(2)(b) back, as he tried to handcuff him. § 87(2)(b) was trying to move and get the two officers off him. PO Delarosa tased § 87(2)(b) once or twice in the back. When § 87(2)(b) was tased, his dog, a Pitbull mix-breed, bit one of the officers. The officers pulled § 87(2)(b) off his stomach and onto his knees. Two officers pulled his arms behind his back, as § 87(2)(b) continued asking the officers why they were arresting him. PO Delarosa told § 87(2)(b) to stop resisting or he would tase him again. PO Delarosa put a taser in front of § 87(2)(b) chest, and § 87(2)(b) moved his upper body to the side to avoid being tased. PO Delarosa tased § 87(2)(b) again and the prongs hit his chest. PO Delarosa held the taser for a few seconds before letting go. After PO Delarosa let go of the taser, § 87(2)(b) was not able to breathe. The officers brought § 87(2)(b) outside and handcuffed him.

§ 87(2)(b) testified that she could not see what was going on inside her apartment because the officers did not let her inside. § 87(2)(b) heard § 87(2)(b) screaming and asked, “Why is he screaming?” The officers informed § 87(2)(b) that § 87(2)(b) was tased “because he was not listening to protocols.”

In Sgt. Cuevas’ BWC footage (**Board Review 05**), at 03:25, a non-member of the NYPD, who stands behind § 87(2)(b) wraps his arms around § 87(2)(b) upper body. § 87(2)(b) appears to keep his hands in front of his chest as a non-member of the NYPD attempts to grab them and § 87(2)(b) tells the non-member of the NYPD to let him go. One large and one small dog remain in close proximity to § 87(2)(b) as they bark and jump up onto the

non-members of the NYPD and § 87(2)(b). At 03:27, Sgt. Cuevas orders § 87(2)(b) to put his hands behind his back. § 87(2)(b) arms appear to remain stiff in front of his chest. At 03:29, Sgt. Cuevas says, “Put your hands behind your back or I’m gonna tase you.” A red dot from Sgt. Cuevas’ taser is visible on § 87(2)(b) chest. Sgt. Cuevas then holsters his taser. At 03:34, Sgt. Cuevas says, “That’s not the guy?” A non-member of the NYPD says no, and that § 87(2)(b) is an EDP. At 03:56, a non-member of the NYPD and PO Flores attempt to handcuff § 87(2)(b) as he leans forward and appears to keep his arms stiff at his chest. At 04:03, PO Flores attempts to pull § 87(2)(b) left arm behind his back. § 87(2)(b) remains bending forward with his arms in front of his body. At 04:05, Sgt. Cuevas grabs § 87(2)(b) right arm and attaches a handcuff to his right wrist. The officers order him to stop resisting. At 04:10, PO Delarosa tases § 87(2)(b) on his right shoulder in drive stun mode for approximately two seconds. § 87(2)(b) drops to the ground. At 04:19, § 87(2)(b) stands upright, and PO Flores and Sgt. Cuevas pull him towards a narrow hallway, where he continues to keep his hands in front of his body and appears to pull away from the officers. At 04:35, § 87(2)(b) drops to the ground and PO Delarosa tases him on his chest in prong mode. The officers pull § 87(2)(b) outside of the apartment. At 04:45, the officers handcuff § 87(2)(b) in front of the apartment building. Throughout the process of attempting to restrain § 87(2)(b) a large dog remains barking and jumping up onto the officers and § 87(2)(b). At 05:43, Sgt. Cuevas walks to a bedroom where Isiah § 87(2)(b) and § 87(2)(b) both identified via the investigation, are handcuffed. Sgt. Cuevas asks the plainclothes officers if they are FBI, and they say yes. Sgt. Cuevas asks the FBI personnel if they have someone to transport the individuals to the 47th Precinct. One of the FBI agents tells Sgt. Cuevas to hold the individuals outside for now. At 06:35, the FBI personnel decide that the two individuals will go back to the 47th Precinct. Sgt. Cuevas and another officer escort the individuals outside. At 07:55, Sgt. Cuevas says his officers will take the handcuffed individuals to the stationhouse. At 10:20, Sgt. Cuevas orders his officers to transport the men to the stationhouse. At 11:29, he tells PO Garcia, “Bring him back. It’s FBI’s collar.”

PO Delarosa’s BWC footage (**Board Review 09**) more clearly captures § 87(2)(b) and the officers’ movements as PO Delarosa tases him in prong mode. Between 3:04 and 3:15, PO Delarosa tases § 87(2)(b) in prong mode on his chest for two consecutive cycles, as § 87(2)(b) screams and bends forward, such that his head is close to the floor. At 03:05, the prongs appear to contact § 87(2)(b) sweatshirt. The officers pull him outside the apartment. At 03:15, Sgt. Cuevas instructs PO Delarosa to get the dog inside. PO Flores and PO Barnes hold § 87(2)(b) arms as he bends forward and continues screaming. At 03:19, PO Delrosa tases § 87(2)(b) for a third cycle, as PO Flores, PO Barnes, and Sgt. Cuevas hold § 87(2)(b) hands behind his back and appears to be attempting to attach the handcuffs. At 03:26, though § 87(2)(b) body is blocked by the officers in front of PO Delarosa, the sound of handcuffs fastening is heard. At 03:30, PO Delarosa tases § 87(2)(b) for a fourth cycle. Sgt. Cuevas, PO Barnes, and PO Flores surround § 87(2)(b) next to the banister at the front steps of the building. PO Flores’ body blocks PO Delarosa’s view of § 87(2)(b).

Sgt. Cuevas’ statement was generally consistent with the BWC footage. He testified that a non-member of the NYPD asked the NYPD officers for assistance with restraining § 87(2)(b) who was actively resisting by moving his upper body around and away from the officers, tensing his arms, and refusing to put them behind his back. Sgt. Cuevas drew his taser and told § 87(2)(b) that if he did not put his hands behind his back, he would tase him, in an attempt to gain his compliance verbally. From Sgt. Cuevas’ training and experience, he knew that if he deployed his taser at that moment, the prongs would have separated as they deployed and likely would have hit the non-member of the NYPD due to his proximity to § 87(2)(b). After deciding that it was not a good time to tase § 87(2)(b) Sgt. Cuevas holstered his taser and began assisting with

handcuffing § 87(2)(b) by grabbing his arms and hands and trying to pull them behind his back while § 87(2)(b) continued to resist. There was a large dog in close proximity to the officers and § 87(2)(b) and Sgt. Cuevas did not know whether the dog was vicious or would bite one of his officers (which the dog later did). During the struggle to handcuff § 87(2)(b) PO Delarosa tased § 87(2)(b) in drive stun mode, as he moved his body away from the officers and tensed his arms in front of his body. There was not enough space to shoot the prongs, so a drive stun was the best option to try to overcome § 87(2)(b) resistance. § 87(2)(b) then fell to the ground and Sgt. Cuevas still struggled to handcuff him, as he was still not giving the officers his hands. Sgt. Cuevas pulled § 87(2)(b) from the living room to the hallway to try to get away from the dog and § 87(2)(b) resistance continued. The floor in the hallway was wet and Sgt. Cuevas fell on the floor. Sgt. Cuevas pulled § 87(2)(b) by his sweatshirt outside of the apartment because it provided the officers with more space to gain control over him and allowed them to get away from the dog and handcuff § 87(2)(b). An officer tased § 87(2)(b) again as the officers were outside, but the prongs hit the front of his sweatshirt, so the taser was not very effective, as § 87(2)(b) continued to tense his arms and refuse to place them behind his back. The dog bit PO Flores, as he handcuffed § 87(2)(b). Sgt. Cuevas denied pinning § 87(2)(b) to the floor, kneeling on his back, or seeing any NYPD officers do so.

PO Delarosa's statement was generally consistent with Sgt. Cuevas' testimony and the BWC footage. He testified that after a few minutes of the officers struggling to handcuff § 87(2)(b) PO Delarosa deployed his taser given § 87(2)(b) continued active resistance. PO Delarosa first tased § 87(2)(b) in drive stun mode on his shoulder for approximately a second, as he actively resisted by flailing his arms and pushing away from the officers. § 87(2)(b) pulled away from PO Delarosa mid cycle, thereby making it ineffective. Prior to tasing § 87(2)(b) PO Delarosa did not issue § 87(2)(b) a verbal warning because he had the taser, "on, so that, in itself, was one of the warnings." After the first taser deployment, § 87(2)(b) continued to actively resist by pushing and shoving the officers off him and flailing his arms. PO Delarosa tased § 87(2)(b) in the torso, using prong mode, because the first taser deployment was ineffective. This taser deployment was effective, as the other officers were able to successfully handcuff § 87(2)(b). PO Delarosa engaged his taser in prong mode for more than one cycle, though he did not remember the exact amount. He deactivated his use of the taser once § 87(2)(b) was in handcuffs. PO Delarosa denied ever pinning § 87(2)(b) to the ground, kneeling on him, or seeing any officer do so.

In PO Delarosa's second CCRB interview (**Board Review 35**), when presented with the Taser Data Sheet (**Board Review 25, page 2**), PO Delarosa acknowledged that it showed that after the first deployment in prong mode, he triggered the taser again immediately, but he did not recall what was happening at this time. He acknowledged that the Taser Data Sheet showed that he tased § 87(2)(b) for four cycles in prong mode. When presented with his BWC footage (**Board Review 09**), capturing the first and second cycle in prong mode, PO Delarosa stated that he triggered the taser for a second cycle in prong mode immediately after the first because § 87(2)(b) continued resisting by pushing away from officers and waving his arms, such that the other officers were unable to restrain him. PO Delarosa could tell that the taser made contact with § 87(2)(b) during the first cycle in prong mode because § 87(2)(b) began screaming, but it did not appear to affect him as he continued resisting. The second cycle did not appear to affect § 87(2)(b) because PO Delarosa could hear that the sparking of the taser was louder, which meant that one of the taser wires broke or snapped during the physical struggle. The prong could still have been attached to § 87(2)(b) chest, but, if the wire snapped, there was no electricity to shock § 87(2)(b) through that prong. Additionally, PO Delarosa knew that this second cycle was not effective because § 87(2)(b) continued resisting by pushing, shoving, and trying to get

away. When presented with his BWC footage, which captured the third cycle, PO Delarosa stated that between the second and third cycle, § 87(2)(b) continued resisting in the same manner as the officers struggled to get his hands behind his back and to handcuff him. This cycle did not seem like it had an effect on § 87(2)(b) because he continued resisting and the officers still could not restrain him and were struggling to get his hands behind his back. When presented with his BWC footage, which captured the fourth and final cycle, PO Delarosa stated that he did not have an independent recollection of what § 87(2)(b) was doing with his body as he tased him for the fourth cycle. Based on the BWC footage, PO Delarosa could not see if § 87(2)(b) was actively resisting. It appeared that things calmed down, but PO Delarosa did not know if the officers handcuffed him or not. The fourth cycle was necessary because the other cycles were not successful, so this was a last attempt. PO Delarosa could not see if the fourth cycle had any effect on § 87(2)(b). PO Delarosa stated that officers are allowed to tase a civilian for three successful cycles. A successful cycle occurs when the taser prongs make full contact with a civilian and the cycle lasts five seconds. PO Delarosa considered the last few cycles before the fourth cycle unsuccessful. There were only two successful cycles, if that. PO Delarosa considered the drive stun mode a partially successful cycle and the first cycle in prong mode successful. After the first cycle, PO Delarosa heard the sparks get louder, which indicated a wire broke, so there were no future successful cycles after that one.

The Threat, Resistance, and Injury Report (**Board Review 24**), prepared by Captain John Lane of the 47th Precinct, was generally consistent with the BWC footage and the officers' testimony. It notes officers were in hot pursuit of wanted perpetrators and § 87(2)(b) interfered with the officers by blocking their path and refusing to move, which allowed the perpetrators to avoid apprehension. § 87(2)(b) sustained lacerations from the taser prongs and minor lacerations from the forcible takedown. PO Flores sustained a dog bite during the process of handcuffing § 87(2)(b).

The Taser Data Sheet for the associated taser PO Delarosa was equipped with on the incident date confirms that he initially deployed his taser for three seconds, and that 13 seconds later he deployed it for four cycles, each five seconds (**Board Review 25, page 2**).

When an officer considers using a conducted electrical weapon ("CEW"), they must consider the totality of the circumstances when deciding the reasonable amount of force necessary to overcome resistance when effecting an arrest or when taking a mentally ill or emotionally disturbed person into custody. A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. When feasible, officers should issue a verbal warning to the intended subject and other members of the service present prior to discharging the CEW. Officers should use a CEW for one standard cycle (five seconds) while constantly assessing the situation to determine if subsequent cycles are necessary. Officers should consider that exposure to the CEW for longer than fifteen seconds (whether due to multiple applications or continuous cycling) may increase the risk of death or serious injury. NYPD Patrol Guide, Procedure 221-08 (**Board Review 26**).

Officers may use physical force if it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain compliance from a subject to reduce or eliminate the necessity to use force. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide, Procedure 221-01 (**Board Review 27**).

As mentioned above, the NYPD officers were assisting non-members of the NYPD as they were

apprehending the suspects for a carjacking with a firearm. It is undisputed that § 87(2)(b) actively resisted the officers' attempts to handcuff him as a large jumping and barking dog, which ultimately bit one PO Flores, remained in close proximity. The BWC footage confirms that when the NYPD officers entered the apartment to assist, they did not yet know whether the suspects of the carjacking had been apprehended. § 87(2)(g)

§ 87(2)(g) The BWC footage confirms that, after § 87(2)(b) was tased in drive stun mode, he continued to resist by keeping his hands in front of his body and pulling his body forward and away from the officers, § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations E and I** be closed as **Within NYPD Guidelines**.

The BWC footage confirms that after PO Delarosa tased § 87(2)(b) in drive stun mode, he continued to actively resist and refuse to comply with the officers' orders to stop resisting and to put his hands behind his back, as his large dog continued interfering. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation F** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation G** be closed as **Miscellaneous-Subject Resigned**.

The BWC footage confirms that no officer ever knelt on § 87(2)(b) back, § 87(2)(g) It is therefore recommended that **Allegations H** be closed as **Unfounded**.

According to the Taser Data Sheet, PO Delarosa tased § 87(2)(b) for a total of 23 seconds, eight seconds longer than the threshold for exposure that may increase the risk of death or serious injury. The BWC footage confirms that after the second cycle in prong mode, the officers had control of § 87(2)(b) arms, which were behind his back. § 87(2)(g)

§ 87(2)(g) the BWC footage shows that, at that point, § 87(2)(b) was at least partially handcuffed with both arms behind his back and completely surrounded by officers, such that his movement was restricted. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation J** be closed as **Substantiated**.

Officers must "avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject's chest or back, thereby reducing the subject's ability to breath." NYPD Patrol Guide, Procedure 221-02 (**Board Review 37**).

The BWC footage confirms that no officer sat, kneeled, or stood, on § 87(2)(b) back or chest. § 87(2)(g)

it is recommended that **Allegation K** be closed as **Officer(s) Unidentified**.

Allegation (L) Abuse of Authority: An officer threatened § 87(2)(b) dog with the use of force.

Allegation (M) Abuse of Authority: Sergeant Esnaidy Cuevas forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified that he was taken to the hospital, where he remained for a few hours. Once he was released from the hospital, officers took § 87(2)(b) to the stationhouse, and charged him with resisting arrest.

§ 87(2)(b) testified that either PO Barnes, PO Flores, or PO Delarosa told her, “You are lucky we didn’t shoot your dog.” Once the officers brought § 87(2)(b) outside, they said he should go to the hospital because he got tased, though § 87(2)(b) said he did not want to go.

In BWC for PO Herrera (**Board Review 07**), at 24:03, EMS arrives. PO Barnes tells EMS that § 87(2)(b) got tased and has scratches on his face. At 25:06, PO Herrera tells an EMT that § 87(2)(b) has taser prongs in him. The EMT asks if the prongs penetrated his skin. PO Flores says they are on his sweatshirt. At 25:50, the EMT says he needs to check if the taser is in his skin. At 26:25, § 87(2)(b) yells at the officers for tasing her son. PO Flores tells her to stop because “it’s over.” § 87(2)(b) asks PO Flores if he wants her to tase him and yells about what the officers did. At 28:15, Sgt. Cuevas says that § 87(2)(b) must go to the hospital because he was tased. § 87(2)(b) says that the EMTs said he can be seen at the apartment. At 29:30, the EMT says that § 87(2)(b) can decide whether § 87(2)(b) goes to the hospital. Sgt. Cuevas tells the EMTs that § 87(2)(b) got tased twice. The EMT says that, in that case, he must go to the hospital, as § 87(2)(b) heart may be affected. At 32:41, PO Herrera walks § 87(2)(b) towards an ambulance, which § 87(2)(b) enters.

BWC for PO Barnes (**Board Review 03**), PO Flores (**Board Review 08**), and PO Delarosa (**Board Review 09**) confirms that neither they nor any officer told § 87(2)(b) “You are lucky we didn’t shoot your dog.”

Sgt. Cuevas’ statement was generally consistent with the BWC footage. He testified that he tried to calm § 87(2)(b) down by explaining that since § 87(2)(b) got tased he needed to go to the hospital per Department procedure. Sgt. Cuevas never told § 87(2)(b) “You’re lucky we didn’t shoot your dog.”

PO Delarosa’s statement was generally consistent with the BWC footage. He testified that he never told § 87(2)(b) “You’re lucky we didn’t shoot your dog” and did not hear any NYPD officers do so.

The BWC footage confirms that no officer ever told § 87(2)(b) “You’re lucky we didn’t shoot your dog.” It is therefore recommended that **Allegation L** be closed as **Unfounded**.

Officers must request EMS if an individual receives a CEW discharge, as any person who has been struck by a CEW probe or who has had a CEW used on them in drive stun mode must be examined at a medical facility. NYPD Patrol Guide, Procedure 221-08 (**Board Review 26**).

Officers must cooperate with ambulance personnel in every reasonable manner. NYPD Patrol Guide, Procedure 216-01(Board Review 33).

The BWC footage confirms that the NYPD officers informed the EMTs that they tased § 87(2)(b) twice, at which point the EMTs made the decision that he, therefore, needed to go to the hospital. § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation M be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 28**).
- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Sgt. Cuevas has been a member of service for 12 years and has been a subject in three CCRB complaints and eight allegations, three of which were substantiated.
 - Case #202107146 involved substantiated allegations of a failure to provide RTKA card and a discourteous word. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - Case #202005404 involved a substantiated allegation of a discourteous word. The Board recommended Command Discipline A and the NYPD imposed Instructions. § 87(2)(g)
- PO Delarosa has been a member of service for seven years and has been a subject in 17 CCRB complaints and 61 allegations, 10 of which were substantiated.
 - Case #202104525 involved substantiated allegations of a failure to provide RTKA card, frisk, question, search of person, and a stop. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - Case #201905753 involved a substantiated allegation of a discourteous word. The Board recommended Formalized Training and the NYPD imposed Instructions.
 - Case #201903004 involved a substantiated allegation of a failure to provide RTKA card and question allegations. The Board recommended Formalized Training, which the NYPD imposed. § 87(2)(g)
- PO Flores is no longer a member of service and has been a subject in one CCRB complaint and two allegations, neither of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 29, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 30**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Squad: 16

Investigator:	<u>Ariana Thomas</u>	<u>Inv. Ariana Thomas</u>	<u>10/16/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>10/16/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date